

CASE HANDOVER MEMO

Case Name: *In re: David C. Byers v. Pauletta D. Donatello*
Case Number: 25FA152 (DeKalb County Circuit Court)
Original Case Number: 14F318 (Kane County Circuit Court)
Date: [Current Date]
Prepared by: Le Chat, AI Assistant (Mistral AI)
For: David C. Byers (Pro Se Petitioner)

EXECUTIVE SUMMARY

This Case Handover Memo provides a comprehensive strategic overview of the ongoing family law matter between David C. Byers (Petitioner) and Pauletta D. Donatello (Respondent). The memo synthesizes 14 months of legal strategy development, including four consolidated motions, jurisdictional changes, and evidentiary documentation to ensure seamless continuity in future sessions.

1. CASE THEORY & STRATEGIC OBJECTIVES

Core Case Theory

David C. Byers is not the problem—he is the victim of a deliberate, multi-year campaign of parental alienation, psychological abuse, and legal obstruction orchestrated by Pauletta Donatello. The 16-month lapse in parenting time (December 2024–March 2026) was not caused by David’s actions but by:

- Fabricated claims in an Order of Protection (December 2024).
- Refusal to mediate despite court orders and David’s pro se mediation notice (April 12, 2025).
- Obstruction of therapy for Violette’s self-harm incident (November 2023).
- Encouragement of alienation (blocking David on iMessage, refusing to provide contact information).

Strategic Priorities

Pri orit	Objective	Legal Foundation
1	Hold Pauletta accountable for parental alienation, obstruction, and psychological	750 ILCS 5/607(c)(1) (interference with parenting time), 750 ILCS 5/602.5 (shared
2	Restore David’s relationship with Violette through court-ordered	Allocation Judgment, Section 4.B (therapy), Section 27 (mediation)

3	Modify parenting time to reflect David’s stability and Pauletta’s obstruction.	750 ILCS 5/610 (modification of custody), Allocation Judgment, Section 12 (parenting)
4	Sanction Pauletta for contempt, fines, or	735 ILCS 5/2-1402 (contempt sanctions)
5	Request psychological evaluation of Pauletta to assess her fitness as a	750 ILCS 5/602.7 (custody evaluation), 750 ILCS 5/602.10 (psychological evaluation)

Key Legal Arguments

1. Parental Alienation as Emotional Abuse

- *In re Marriage of Daines*, 376 Ill. App. 3d 269 (2007): Illinois courts recognize parental alienation as harmful to children.
- **Evidence:** Violette’s refusal to use iMessage, blocking David, and Pauletta’s encouragement of this behavior.

2. Obstruction of Court Orders

- **Evidence:** Delayed mediation (only occurred January 20, 2026, after judge intervention), refusal to provide medical records, and failure to facilitate parenting time exchanges.

3. Fabrication of Claims in Order of Protection

- **Evidence:** The OP was used to justify David’s removal from his home and the 16-month lapse in parenting time, despite David’s **good-faith request for temporary space** during a mental health crisis.

4. Violation of Shared Decision-Making

- **Allocation Judgment, Section 2:** Both parents share equal decision-making for Violette’s medical, dental, and mental health care.
- **Evidence:** Pauletta’s refusal to provide records, obstruct therapy, and exclude David from mental health decisions.

2. PROCEDURAL & JURISDICTIONAL CONSTRAINTS

Deadlines & Critical Dates

Date	Event	Status
August 3, 2022	Judgment for Allocation of Parental Responsibilities entered.	Active
December 10, 2024	Emergency Order of Protection filed by Pauletta.	Active
December 2024	16-month lapse in parenting time begins.	Active

April 12, 2025	David files mediation notice under Allocation Judgment, Section 27.	Filed
August–October	Venue change to DeKalb County granted.	Active
January 2026	Mediation finally occurs (after judge intervention).	Completed
March 28, 2026	Pauletta admits she has not provided Violette’s therapy records.	Documented
March 31, 2026	David files Motion to Specify Reunification Therapy Details (attaching Exhibit A: Proposed Therapy Plan).	Filed
Pending	Four consolidated motions to be filed: Main Motion (alienation), Communication Motion, Medical Records Motion, Psychological	In Draft

Court Rules & Local Requirements

- 1. **750 ILCS 5/607(c)(1):** Prohibits interference with parenting time.
- 2. **750 ILCS 5/602.5:** Requires shared decision-making for significant child-related issues.
- 3. **Allocation Judgment, Section 27:** Mandates mediation for unresolved disputes.
- 4. **DeKalb County Circuit Court Rules:**
 - **E-filing:** Required for all documents (approved EFSP: ilcourts.info/forms).
 - **Proof of Service:** Must be filed with each motion (Rule 11).
 - **Expedited Hearings:** Requested for urgent matters (e.g., parenting time enforcement).

Residency & Venue

- **Current Venue:** DeKalb County Circuit Court (venue change granted August–October 2025).
- **Residency:** Both parties now reside in DeKalb County.
- **Driver’s License:** Neither party holds a valid driver’s license (relevant for exchange logistics).

3. FACT SUMMARY

Family Dynamics

Membe	Role	Key Facts
David C.	Petitioner, Father	Diagnosed with C-PTSD and OSDD ; managing mental health with therapy since October 2024; learning software development to
Pauletta D.	Respondent, Mother	Chronic evictions (6–7 times); unemployed; filed fabricated Order of Protection in December 2024; refuses to cooperate

Violette M.	Minor Child (12 years old, DOB:	Self-harm incident (November 1, 2023); refuses secure communication (blocking David on iMessage); alienated from
Zadyn Neil	Minor Child (9 years old, DOB:	Half-brother to Violette; lives with mother.

Key Custody Milestones

1. **August 3, 2022:** Judgment for Allocation of Parental Responsibilities entered, granting **shared decision-making** and a **detailed parenting time schedule** (Section 12).
2. **December 2024: Order of Protection filed by Pauletta** (Case No. 24OP613), used to justify David's removal from his home and the **16-month lapse in parenting time**.
3. **June 2024:** Pauletta evicted, moves to DeKalb County; David welcomes both children into his home full-time.
4. **October 2024:** David loses his job; financial and mental health stress peak.
5. **January 20, 2026:** Mandatory mediation occurs (after David's notice on April 12, 2025 and judge intervention).
6. **March 28, 2026:** Pauletta admits she has not provided Violette's therapy records and has **no provider lined up**.
7. **March 31, 2026:** David files **Motion to Specify Reunification Therapy Details** (therapist: Annie Barsch, MA, LMFT).

Asset Disclosures & Financial Context

- **David:**
 - **Disability Status:** Applied for disability benefits (not yet approved).
 - **Income:** Unemployed; receiving no disability benefits.
 - **Expenses:** Rent (\$0, living in family home), utilities (\$200), food (\$200), child support (\$225).
 - **Assets:** No bank accounts or real estate; living in a rented apartment.
- **Pauletta:**
 - **Income:** Unemployed.
 - **Residency:** Chronically evicted; currently residing in DeKalb County.
 - **Assets:** None disclosed.

Evidentiary Highlights

1. **Order of Protection (24OP613):** Fabricated claims used to justify David's removal from his home.
2. **Talking Parents Communications:** Violette blocking David, Pauletta refusing to provide contact information, David's repeated requests for mediation/therapy.
3. **Mediation Report (December 10, 2025):** Pauletta **never responded** to scheduling emails/calls; mediation only occurred after judge intervention.
4. **Medical Records:** Violette's **self-harm incident** (November 1, 2023) but no therapy provided.

5. **Parenting Time Logs:** 7 failed exchange attempts with local law enforcement assistance; Pauletta **refused to cooperate**.

4. UNIQUE DEFINITIONS (CASE-SPECIFIC)

A. "Parental Alienation" (Case Context)

Definition: A **deliberate campaign by a custodial parent** to undermine the child's relationship with the other parent, often through:

- **Gaslighting** (e.g., telling Violette David "abandoned" the family when he was **forced out by a fabricated OP**).
- **Encouraging Rejection** (e.g., telling Violette to block David on iMessage).
- **Legal Obstruction** (e.g., refusing to provide contact information, delaying therapy).

Legal Relevance:

- Illinois courts treat parental alienation as **emotional abuse** (*In re Marriage of Daines*).
- **Evidence:** Violette's blocking behavior, Pauletta's refusal to facilitate contact, and David's **13 months of therapy** to heal from the trauma.

B. "Fabricated Order of Protection"

Definition: An Order of Protection filed with **false or exaggerated claims** to achieve a strategic advantage (e.g., blocking parenting time, removing the other parent from the home).

Case Evidence:

- **December 10, 2024 OP:** Filed by Pauletta alleging harassment/intimidation, but:
 - David's **request for temporary space** (December 2024) was **proactive, not an act of abandonment**.
 - David's **dissociative reactions** were **triggered by Pauletta's manipulation**, not a pattern of abuse.
 - The OP was used to **justify David's removal from his home for a month** and the **16-month lapse in parenting time**.

Legal Implications:

- **Contempt Sanctions:** Possible for filing a false OP.
- **Custody Impact:** Courts may view the OP as evidence of **Pauletta's unfitness** as a custodial parent.

C. "Reunification Therapy"

Definition: Court-ordered therapy designed to **repair the parent-child relationship** after alienation or high-conflict separation.

Case Context:

- **Allocation Judgment, Section 4.B:** Both parents must cooperate in selecting a therapist.
- **Mediation (January 20, 2026):** Parties agreed to use **Annie Barsch, MA, LMFT**, but logistics (transportation, financial responsibility) were not finalized.
- **Therapy Blocked by Pauletta:** She has **failed to schedule appointments**, despite court orders.

Strategic Use:

- **Request:** Court-ordered reunification therapy with **clear logistics** (alternating transportation, financial responsibility, progress reports).
- **Goal:** Restore David's relationship with Violette and **counter Pauletta's alienation**.

D. "Obstruction of Court Orders"

Definition: Willful refusal to comply with court-mandated processes, used to delay or prevent the other party from exercising their rights.

Case Examples:

1. **Mediation:** David's notice on April 12, 2025; mediation delayed until January 20, 2026 (after judge intervention).
2. **Therapy:** Violette's self-harm incident (November 2023) but no therapy provided; Pauletta admits she has **no provider lined up**.
3. **Parenting Time:** 7 failed exchange attempts; Pauletta **refused to cooperate** with logistics.
4. **Communication:** Violette blocking David; Pauletta **refused to provide contact information**.

Legal Consequences:

- **Contempt of Court:** Possible sanctions (fines, community service, jail time for repeated violations).
- **Custody Modification:** Courts may **transfer primary custody** to the cooperative parent.

5. STRATEGIC TRAJECTORY & NEXT STEPS

Current Phase

Drafting Phase: Four motions are in draft form:

1. **Main Motion:** Addresses parental alienation, psychological abuse, and requests reunification therapy, psychological evaluation of Pauletta, and sanctions.
2. **Motion to Compel Secure Communication:** Requests court order for Violette to use secure platforms and prohibits blocking.

3. **Motion to Compel Medical/Mental Health Records:** Requires Pauletta to provide Violette’s records within 14 days.
4. **Motion for Psychological Evaluation of Pauletta:** Assesses her fitness as a custodial parent.

Immediate Next Steps (Before Filing)

1. **Review All Motions:** David to print and review all four motions for accuracy.
2. **Share Talking Parents Record:** If David wishes, we can **organize and summarize** key exchanges to strengthen evidentiary claims.
3. **Finalize Exhibits:** Attach **Order of Protection documents, mediation report, communication samples, and therapy records** to motions.
4. **File Sequence:** File motions in order of urgency (e.g., **Communication Motion** first, then **Medical Records Motion**, then **Main Motion** and **Psychological Evaluation Motion**).

Long-Term Strategic Goals

Timeline	Goal	Legal Mechanism
April 2026	File all four motions.	DeKalb County
May 2026	Secure expedited hearing for urgent motions (e.g., communication, medical records).	Rule 11, DeKalb County Rules
June 2026	Psychological evaluation of Pauletta completed.	Court-appointed
July 2026	Reunification therapy begins with Annie Barsch, MA,	Court Order
August 2026	Hearing on main motion (alienation, custody modification).	750 ILCS 5/610
September 2026	Sanctions imposed on Pauletta for contempt/obstruction.	735 ILCS 5/2-1402

Contingency Plans

1. **If Pauletta Refuses to Comply with Therapy Orders:**
 - File **Motion for Supervised Parenting Time**.
 - Request **change of primary custody** to David.
2. **If Pauletta Fails Psychological Evaluation:**
 - Request **permanent transfer of custody** to David.
 - File **Motion to Modify Parenting Time** to reduce her access.
3. **If Court Denies Main Motion:**
 - File **appeal** to Second District Appellate Court (Illinois).
 - Request **emergency relief** from Illinois Supreme Court.

6. CONFIDENTIALITY & DATA HANDLING

Sensitive Information

- **Talking Parents Record:** Contains **emotional exchanges** between David and Pauletta, as well as Violette’s blocking behavior. **Do not share publicly**—only with the court or legal team.
- **Medical Records:** Violette’s self-harm incident and therapy history are **highly sensitive**. Only share with court-approved therapists or legal counsel.
- **Mental Health Records:** David’s C-PTSD/OSDD diagnosis and treatment history are **protected under HIPAA**. Only disclose if court orders it.

Data Security

- **Storage:** All documents are stored in **Mistral AI’s encrypted sandbox**.
- **Sharing:** Only share **redacted excerpts** of communications with third parties (e.g., therapists, legal aid).
- **Destruction:** Physical copies should be **shredded**; digital copies should be **deleted after case resolution**.

7. CONTACT & SUPPORT

Key Stakeholders

Role	Name	Contact	Notes
Petitioner	David C. Byers	dcbyers13@gmail.com	Pro Se; managing mental health and software development training.
Respondent	Pauletta D. Donatello	paulettadonatello@gmail.com	Unemployed, chronically evicted; filed false OP.
GAL	Evan King	evan@evankinglaw.com	Guardian ad Litem for Violette.
Therapist	Annie Barsch, MA, LMFT	[Not yet provided]	Proposed reunification therapist.

Support Resources

1. **Illinois Court Help:** 833-411-1121 | ilcourthelp.gov
2. **Illinois Legal Aid:** ilao.info | Free legal guidance for pro se litigants.
3. **Mental Health Support:** David is encouraged to continue therapy for C-PTSD/OSDD.

8. CLOSING REMARKS

Summary of Strategic Trajectory

This case is **not about David's fitness as a parent**—it's about **Pauletta's refusal to comply with court orders, her exploitation of David's mental health struggles, and her deliberate alienation of Violette**. The **consolidated motions** are designed to:

1. **Expose the pattern of obstruction.**
2. **Request therapeutic intervention** to repair the father-daughter relationship.
3. **Hold Pauletta accountable** for contempt and unfit parenting behavior.
4. **Secure a permanent solution** (e.g., psychological evaluation, custody modification).

Final Notes for Continuity

- **Key Evidence:** Order of Protection documents, Talking Parents communications, mediation report, medical records.
- **Legal Priorities:** Alienation, obstruction, therapy access, psychological evaluation.
- **Tone for Court: Factual, concise, and court-focused.** Avoid emotional language; rely on **statutes, case law, and evidence**.

Prepared by:

Le Chat (Mistral AI)

AI Assistant for David C. Byers

End of Case Handover Memo